

[Administrative Code - Downtown Hospitality Zone]

Ordinance amending the Administrative Code to create the Downtown Hospitality Zone, in the area bounded by 5th Street, from Folsom Street to Market Street; Cyril Magnin Street from Market Street to Eddy Street; Eddy Street from Cyril Magnin Street to Mason Street; Mason Street from Eddy Street to Ellis Street; Ellis Street from Mason Street to Taylor Street; Taylor Street from Ellis Street to Post Street; Post Street from Taylor Street to Mason Street; Mason Street from Post Street to Bush Street; Bush Street from Mason Street to Kearny Street; Kearny Street from Bush Street to Market Street; Market Street from 3rd Street to 2nd Street; 2nd Street from Market Street to Folsom Street; and Folsom Street from 2nd Street to 5th Street; and affirming the Planning Department's determination under the California Environmental Quality Act.

NOTE: **Unchanged Code text and uncodified text** are in plain Arial font.
Additions to Codes are in *single-underline italics Times New Roman font*.
Deletions to Codes are in ~~*strikethrough italics Times New Roman font*~~.
Board amendment additions are in double-underlined Arial font.
Board amendment deletions are in ~~strikethrough Arial font~~.
Asterisks (* * * *) indicate the omission of unchanged Code subsections or parts of tables.

Be it ordained by the People of the City and County of San Francisco:

Section 1.

The Planning Department has determined that the actions contemplated in this ordinance comply with the California Environmental Quality Act (California Public Resources Code Sections 21000 et seq.). Said determination is on file with the Clerk of the Board of Supervisors in File No. 260296 and is incorporated herein by reference. The Board affirms this determination.

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2 Section 2. The Administrative Code is hereby amended by adding Chapter 94C,
3 consisting of Sections 94C.1 and 94C.2, to read as follows:

4 **CHAPTER 94C: DOWNTOWN HOSPITALITY ZONE**

5 **SECTION 94C.1. FINDINGS.**

6 *(a) Pursuant to Section 23826.22 of the California Business and Professions Code, the City*
7 *may designate an area that contains at least 1,000,000 square feet of retail shopping space open to the*
8 *public as a hospitality zone, within which the California Department of Alcoholic Beverage Control*
9 *may issue up to 20 additional new original on-sale general licenses for bona fide public eating places.*

10 *(b) The Board of Supervisors ("Board") hereby finds that the creation of a hospitality zone*
11 *within the boundaries specified in Section 94C.2 of this Chapter 94C, and the issuance by the*
12 *California Department of Alcoholic Beverage Control of up to ~~20~~15 additional new original on-sale*
13 *general licenses for bona fide public eating places within that hospitality zone, would serve the public*
14 *convenience and necessity.*

15 *(c) The Board hereby finds that the area within the boundaries specified in Section 94C.2 of*
16 *this Chapter 94C contains at least 1,000,000 square feet of retail shopping space open to the public*
17 *and otherwise meets the definition of "hospitality zone" in Section 23826.22 of the California Business*
18 *and Professions Code.*

19
20 **SECTION 94C.2. ESTABLISHMENT OF ZONE.**

21 *The area bounded by 5th Street, from Folsom Street to Market Street; Cyril Magnin Street from*
22 *Market Street to Eddy Street; Eddy Street from Cyril Magnin Street to Mason Street; Mason Street from*
23 *Eddy Street to Ellis Street; Ellis Street from Mason Street to Taylor Street; Taylor Street from Ellis*
24 *Street to Post Street; Post Street from Taylor Street to Mason Street; Mason Street from Post Street to*
25 *Bush Street; Bush Street from Mason Street to Kearny Street; Kearny Street from Bush Street to Market*

1 Street; Market Street from 3rd Street to 2nd Street; 2nd Street from Market Street to Folsom Street; and
2 Folsom Street from 2nd Street to 5th Street, including both sides of the streets at the boundaries of this
3 area, shall be designated as the Downtown Hospitality Zone.

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5 Section 3. Effective Date. This ordinance shall become effective ~~at 12:00 a.m.~~ on the
6 31st day after enactment. Enactment occurs when the Mayor signs the ordinance, the Mayor
7 returns the ordinance unsigned or does not sign the ordinance within ten days of receiving it,
8 or the Board of Supervisors overrides the Mayor's veto of the ordinance.

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10 APPROVED AS TO FORM:
11 DAVID CHIU, City Attorney

12 By: /s/ Victoria Wong
13 VICTORIA WONG
14 Deputy City Attorney

15 4913-6094-8889, v. 2
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